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Case Number: 25STCV11946 Hearing Date: September 1, 2026 Dept: 510

No.

12 - Grecia Alonso v. VHG Santa Monica LLC, et al.

Defendant

VHG Santa Monica LLC's Motion for Protective Order

Defendant

VHG Santa Monica LLC moves for a protective order preventing Plaintiff from conducting a site inspection of the Viceroy Hotel.

Under

Code of Civil Procedure section 2031.060(a), "When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order." Generally, "the burden is on the party seeking the protective order to show good cause for whatever order is sought." (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

Defendant

seeks to prevent Plaintiff from conducting a site inspection of her former place of employment, the Viceroy Hotel. Specifically, Plaintiff's demand seeks an inspection of the following:

[A]ny and all areas where Plaintiff

worked or accessed in the course of her employment with Defendant. This includes, but is not limited to, the front reception area; conference rooms; HR office; the external areas of the building, including the parking areas and

access roads; and any break area or other area where statutorily mandated posters, including but not limited to, wage posters and posters regarding the Fair Employment and Housing Act are or were posted.

(Machlof
Decl., Ex. B.)

Defendant
does not show the requisite good cause to bar this inspection in its entirety.

First,
Defendant argues that the demand is not reasonably particularized as required under CCP § 2031.030(c)(1) because it includes the language “any and all areas where Plaintiff worked or accessed” and is not technically “limited to” the areas defined in the demand. Defendant argues that, as drafted, the demand “would necessarily include virtually all operational areas of a functioning hotel, including the lobby, guest rooms, dining areas, kitchens, restrooms, administrative offices, and other guest spaces.” (Motion, at p. 8.)

The
Court agrees with Defendant to an extent. The demand’s “any and all” language signifies a potentially limitless inspection of all areas of an active hotel, which is a larger-than-average place of employment. However, the overbreadth of the demand alone does not warrant a blanket denial of the site inspection altogether; it is possible that several areas of the hotel warrant inspection given Plaintiff’s claims. The Court will restrict access to occupied guest and meeting rooms and operational spaces not tied to Plaintiff’s claims, such as kitchens and restrooms. If Defendant seeks more clarification as to what specific areas Plaintiff seeks to inspect, Defendant is urged to seek such clarification during meet and confer efforts. Areas of the hotel that are open to the public do not warrant any restrictions on access.

Second,
Defendant argues that the site inspection would invade third-party privacy rights, because hotel guests would be accessing the hotel during the inspection. Defendant expresses concern that Plaintiff’s inspection will interrupt the active operations of the hotel, and any photographing or recording accompanying the inspection would intrude on hotel guests’ and employees’ rights to privacy.

Defendant's

privacy concern again does not warrant denying the site inspection in full. The demand requests a 10:00 a.m. site inspection; however, Plaintiff suggests that she is amenable to rescheduling the inspection to a mutually agreed-upon time. Thus, the parties can discuss a timeframe in which the hotel would be less active.

As

for the guests' privacy concerns, the Court notes that the demand itself states: "Plaintiff does not intend to inspect, photograph, and/or video record any files, documents not on open display, or otherwise private information. Plaintiff seeks only to inspect, photograph, and videotape the physical structure and visible areas described herein and does not intend to disturb anything in the inspected space." (Machlof Decl., Ex. B.) An inspection aimed at photographing or recording the physical structure of certain rooms and work spaces does not constitute a serious intrusion on privacy rights. Any specific privacy concerns could be remedied by reasonable meet and confer discussions between counsel.

Lastly,

Defendant argues that the site inspection seeks irrelevant information and, therefore, should be barred. The Court disagrees. Plaintiff is entitled to conduct a site inspection under the Civil Discovery Act. (See Code Civ. Proc., § 2031.010(d) ["A party may demand that any other party allow the party making the demand . . . to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it."].) In this employment case, Plaintiff alleges that several important events occurred at the Viceroy Hotel, including an act of sexual harassment. A site inspection of the location where she alleges certain employment-related events occurred could uncover relevant information, such as the size of a room, certain visibility conditions, proximity of potential witnesses, etc. Also, an inspection of areas where FEHA and wage flyers are posted could also be relevant to Plaintiff's claims.

Sanctions

Defendant and Plaintiff request

sanctions against one another. Code of Civil Procedure section 2031.060(h) provides, "the court shall impose a monetary sanction . . . against any party, person, or attorney who

unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Here, Defendant did not successfully obtain a protective order barring the site inspection in its entirety. However, Defendant acted with substantial justification, and the Court found certain narrowing conditions for the site inspection necessary. The Court declines to award sanctions to either party.

Disposition

Defendant VHG Santa Monica LLC's motion for protective order is granted in part. The Court hereby limits the site inspection demand to exclude any occupied guest and meeting rooms in the hotel and operational spaces not tied to Plaintiff's claims, such as kitchens and restrooms.

Plaintiff's

Motion to Compel Compliance with her Demand for Inspection of Premises

Plaintiff

Grecia Alonso moves to compel Defendant VHG Santa Monica LLC to allow Plaintiff to inspect Viceroy Hotel.

“A

party may demand that any other party allow the party making the demand, or someone acting on the demanding party's behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” (Code Civ. Proc., § 2031.010(d).) A party demanding inspection may move to compel further responses if “[a] statement of compliance with the demand is incomplete,” “[a] representation of inability to comply is inadequate, incomplete, or evasive,” or “[a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

The

Court cannot grant the relief that Plaintiff seeks. Plaintiff makes this motion as a “motion to compel compliance.” However, a motion to compel compliance allows

the Court to compel compliance with a demand for inspection only if Defendant has already provided a statement of compliance. (See Code Civ. Proc., § 2031.320(a) ["If a party filing a response to a demand for inspection . . . thereafter fails to permit the inspection . . . in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance."].) Here, Defendant has not provided a statement of compliance. Instead, Defendant served objections-only responses to the demand. (See Saur Decl., Ex. 4.) Plaintiff should have moved to compel a further response under CCP § 2031.310(a).

However, as set forth in the Court's ruling on Defendant's protective order, Plaintiff has a right to conduct a site inspection. The Court encourages the parties to meet and confer to resolve this discovery issue.

Disposition

Plaintiff

Grecia Alonso's motion to compel compliance with demand for inspection is denied.

Plaintiff

Grecia Alonso's Motion to Compel Further Deposition Testimony of Defendant VHG Santa Monica LLC's Person Most Knowledgeable

Plaintiff Grecia Alonso moves to compel Joqueeta Holmes ("Holmes"), Defendant's PMK, to answer 18 questions asked at her deposition.

Separate Statement

As

an initial matter, the Court notes that Plaintiff did not file a separate statement alongside this motion as required. (See California Rules of Court, rule 3.1345(a)(4) ["Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion: . . . (4) To compel answers at a deposition."].) A trial court can deny a motion to compel when the moving party fails to file a

separate statement. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893.) Despite this error, the Court will proceed to the merits. The parties should comply with all court rules in the future.

Compel Further Deposition Testimony

"If a deponent fails to answer any question ..., the party seeking discovery may move the court for an order compelling that answer." (Code Civ. Proc., § 2025.480(a).)

Plaintiff

identifies 18 questions that Defense counsel instructed Holmes not to answer at her deposition:

1.

What

are the names of the employees who were terminated where calling out sick was one of the reasons for their termination? (141:24-143:2)

2.

What

happened with Lizette Saucedo? Why did she leave VHG? (33:15-20)

3.

Was

Ms. Saucedo terminated? (33:22-24)

4.

Did

Ms. Saucedo leave her employment voluntarily? (34:7-10)

5.

Did

Ms. Saucedo receive any discipline leading up to her departure from VHG? (34:12-15)

6.

Did

Ms. Holmes leave her prior employment at the Fairmont Miramar Hotel

voluntarily? (69:5-9)

7.

Did

Ms. Holmes leave her prior employment at the Bel Age Hotel voluntarily?

(70:2-7)

8.

Did

Ms. Holmes leave her prior employment at Dave & Buster's voluntarily?

(71:14-19)

9.

Did

Ms. Holmes leave her prior employment at Chick-fil-A voluntarily? (72:9-14)

10. Have you ever substantiated concerns
of discrimination during your employment with VHG? (80:5-14)

11. Have you ever investigated any other
employees' concerns of discrimination other than Ms. Alonso? (80:10-14)

12. Have you ever investigated concerns
of harassment other than Ms. Alonso's? (80:16-19)

13. Have you ever substantiated claims of
harassment during your employment with VHG? (80:21-24)

14. Has VHG ever substantiated any
allegations of harassment during the time you have been there? (81:2-6)

15. Have you ever investigated concerns
of retaliation? (81:8-11)

16. During the time that you have worked
at VHG, have there been any investigations into retaliation? (81:13-16)

17. During your employment with VHG, has
VHG ever substantiated allegations of retaliation? (81:18-21)

18. Did you consult with counsel before moving forward with Ms. Alonso's termination? (177:12-16)

Plaintiff divides the questions into four main categories: (1) Saucedo's departure from VHG and Holmes' departure from prior employers; (2) identity of me-too witnesses; (3) VHG's handling of past allegations of discrimination, harassment, and retaliation; and (4) whether Holmes consulted with counsel before Plaintiff's termination. The Court will address each in turn.

A. Saucedo's Departure from VHG and Holmes' Employment History

Plaintiff's counsel asked Holmes to discuss the circumstances behind Lizette Saucedo's departure from VHG. Saucedo was one of two HR decision-makers who approved the terminations of two to three employees where calling out sick was a factor in their terminations. (See Question nos. 2-5.) Defense counsel objected based on third-party privacy. Plaintiff also asked several questions regarding Holmes' prior employment—namely, whether she left four former places of employment voluntarily. (See Question nos. 6-9.) Defense counsel objected based on privacy.

Saucedo and Holmes' privacy interests outweigh Plaintiff's need for this information. "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) If the objecting party shows all three elements, then the court must balance the need for disclosure against the right to privacy. (Ibid.) The court must also consider "the availability of alternatives and protective measures." (Id. at p. 556.)

Here, people have a right to privacy in their personnel files and other employment records. (Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 528-530 [disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531].) In addition, Saucedo and Holmes would have an objectively reasonable expectation of privacy: one would not expect that one former employee's lawsuit regarding discrimination and harassment would implicate other employees' reasons for leaving their employer. The intrusion is serious: these questions would disclose private matters of past discipline or termination that a third party

would not expect to be revealed.

Importantly,

Plaintiff does not show a reasonable need for disclosure of this information.

As for information regarding Saucedo, Plaintiff argues that this information is necessary because “it is directly relevant to understanding the conduct and motivations of the HR personnel involved in employee termination decisions, including the investigation and termination of Ms. Alonso.” (Motion, at p. 10.)

Similarly, Plaintiff argues that information regarding Holmes’ departure from various employers is “relevant to assessing the adequacy and impartiality of VHG’s HR practices.” (Motion, at p. 12.)

The Court is not

convinced. It is not apparent how Saucedo and Holmes’ departure from VHG or other employers would help Plaintiff in interpreting their motivations or impartiality while working at VHG. This asserted need for disclosure does not make the requested information relevant or reasonably calculated to lead to the discovery of admissible information or outweigh their privacy rights.

B. Identity of Me-Too Witnesses

During the deposition, Plaintiff’s counsel asked Holmes to provide the “names of the employees who were terminated where calling out sick was one of the reasons for their termination.” (Question no. 1.) Defense counsel objected based on third-party privacy rights and instructed Holmes not to answer.

This was an improper objection. Plaintiff is entitled to seek the names of witnesses who may have discoverable information. Under Code of Civil Procedure section 2017.010, “Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter.” Here, this is certainly the case. Plaintiff alleges she was improperly terminated for using available sick time. She is entitled to the names of other former employees who were terminated, in part, because they called out sick. These circumstances are sufficiently similar to one another to warrant the discovery of these employees’ names.

In contrast to the termination information sought regarding Saucedo and Holmes, the privacy rights of these third parties are not outweighed by Plaintiff’s need for information here. Notably, Plaintiff only

seeks the names of these employees, which is not a serious invasion when coupled with any necessary measures to protect privacy, such as a protective order. In addition, this information is relevant to Plaintiff's claims: these witnesses potentially suffered analogous termination based on improper reasons. The discovery of this information outweighs any right to privacy here.

C. VHG's Prior Investigations into Discrimination and Harassment

Plaintiff's counsel asked several questions concerning whether VHG had ever investigated or substantiated other claims of harassment and discrimination from other employees in the past. (See Question nos. 10-17.) Defense counsel seemingly objected based on these questions being outside the scope of categories listed on her deposition notice. This is not a proper reason to instruct the witness not to answer a question.

To the extent Defense counsel objected based on privacy—it is unclear from the deposition transcript provided—this objection was improper. The questions, as phrased, do not implicate disclosing any personal information of other employees. Holmes, as the company's PMK, is required to answer whether past investigations into discrimination have occurred.

D. Whether Holmes Consulted with Counsel

Plaintiff's counsel asked Holmes whether she consulted with counsel before moving forward with Plaintiff's termination. (Question no. 18.) Defense counsel objected based on privilege. This was an improper objection. The attorney-client privilege protects "information transmitted between a client and his or her lawyer in the course of that relationship and in confidence." (Evid. Code, § 952.) It does not cover whether Holmes consulted with counsel—just the contents of any such consultation. An answer of "yes" or "no" would not disclose any privileged communication.

Sanctions

Both parties move for sanctions against one another. "The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code

Civ. Proc., § 2025.480(j).)

The Court declines to award sanctions here. Both parties were partially successful: Plaintiff obtained an order compelling further responses to 10 of the 18 deposition questions identified. Meanwhile, Defendant substantiated its privacy objections for the other 8 questions. Both parties acted with substantial justification.

Disposition

Plaintiff

Grecia Alonso's motion to compel further deposition testimony is granted in part. Plaintiff is entitled to further deposition testimony as to question nos. 1, 10-17, and 18 as identified in Plaintiff's motion, and reasonable follow-up questions.